

Meenu Paper Mills Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 25 May 2011 · Writ-C No. 30823 of 2011 · **Interim continued on non-cash security; pleadings directed; pending**

HEADNOTE

On a challenge to additional security, the Division Bench observed that s.47 of the Electricity Act, 2003 is to be read with clause 4.20 of the U.P. Electricity Supply Code, 2005, directed a counter-affidavit, and continued the connected-matters interim order subject to furnishing security other than cash and bank guarantee, connecting the writ with WP 9849 of 2011.

FACTUAL SUMMARY

M/s Meenu Paper Mills Pvt. Ltd. challenged additional security demanded by Paschimanchal Vidyut Vitran Nigam Ltd. About five hundred similar writs were already pending with interim orders. The mill said additional security is unnecessary if a prepaid scheme is provided; the licensee said no prepaid metre exists in the State. The Division Bench called for a counter-affidavit, continued the interim protection given in connected matters subject to security other than cash or bank guarantee, and tagged the petition with Writ-C No. 9849 of 2011.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional-security

HOLDING

Section 47 of the Electricity Act, 2003 is to be read with clause 4.20 of the U.P. Electricity Supply Code, 2005 in connection with security and additional security. The additional-security writ was not decided on merits; the connected-matters interim order would continue subject to furnishing security other than cash and bank guarantee. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A PREPAID SCHEME, IF PROVIDED, WOULD EXEMPT THE CONSUMER FROM ADDITIONAL SECURITY

Petitioner agitated the point; respondents said no prepaid metre is available in the State. ¶ 1

NOT DECIDED — MERITS OF THE ADDITIONAL-SECURITY DEMAND UNDER SECTION 47 READ WITH CLAUSE 4.20

Counter-affidavit directed; writ kept pending and connected with WP 9849 of 2011. ¶ 1